

MASTER CLOUD HOSTING AND SUBSCRIPTION SERVICES AGREEMENT

between

Northbridge Data Systems Ltd ("Vendor")

and

Solstice Retail Group plc ("Customer")

This Master Cloud Hosting and Subscription Services Agreement (this "Agreement") is entered into and effective as of 1 March 2024 (the "Effective Date") by and between:

Northbridge Data Systems Ltd, a company registered in England and Wales under company number 09876543, with its registered office at 25 Farringdon Street, London, EC4A 4AB, United Kingdom ("Vendor" or "Northbridge"); and

Solstice Retail Group plc, a company registered in England and Wales under company number 07654321, with its registered office at 1 Riverside Plaza, Manchester, M1 3AB, United Kingdom ("Customer" or "Solstice"),

each a "Party" and together the "Parties."

RECITALS

WHEREAS, Vendor operates a cloud-hosted e-commerce platform and provides related subscription software and hosting services; and

WHEREAS, Customer wishes to subscribe to such services on the terms set out in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. DEFINITIONS

“Services” means the cloud hosting, infrastructure, and software subscription services described in Schedule A, including access to the Northbridge e-commerce platform.

“Customer Data” means all data, content, and information submitted by Customer or its end users to the Services.

“User Licence” means a named-user subscription entitling one individual to access the Services.

“Renewal Term” has the meaning set out in Section 2.2.

2. TERM AND RENEWAL

2.1 Initial Term. This Agreement commences on the Effective Date, 1 March 2024, and continues for an initial term of three (3) years, expiring on 28 February 2027 (the “Initial Term”), unless terminated earlier in accordance with Section 13.

2.2 Automatic Renewal. Upon expiry of the Initial Term, this Agreement shall automatically renew for successive twelve (12)-month periods (each, a “Renewal Term”), unless either Party gives the other Party written notice of non-renewal at least ninety (90) days before the end of the then-current Initial Term or Renewal Term.

2.3 Termination for Convenience. Following the Initial Term, either Party may terminate this Agreement for convenience, without cause, by giving the other Party not less than one hundred eighty (180) days' prior written notice.

3. SERVICES; MINIMUM COMMITMENT

3.1 Vendor shall provide the Services in accordance with this Agreement and the service descriptions set out in Schedule A.

3.2 Minimum Commitment. Customer commits to a minimum Annual Subscription of five hundred (500) User Licences for each year of the Term, regardless of actual usage (the “Minimum Commitment”).

4. FEES, PAYMENT AND PRICE ADJUSTMENTS

4.1 Fees. Customer shall pay Vendor an annual subscription fee of one hundred sixty thousand pounds sterling (£160,000), exclusive of VAT (the “Annual Subscription Fee”), invoiced quarterly in advance. The aggregate value of this Agreement over the three (3)-year Initial Term is four hundred eighty thousand pounds sterling (£480,000).

4.2 Payment Terms. Customer shall pay each undisputed invoice within thirty (30) days of the invoice date.

4.3 Pricing Model. The Services are provided on a subscription basis, priced per User Licence as set out in Schedule A.

4.4 Price Escalation. At the start of each Renewal Term, the Annual Subscription Fee shall increase by the lesser of (i) five percent (5%), or (ii) the percentage increase in the UK Consumer Prices Index (CPI) over the preceding twelve (12) months, as published by the Office for National Statistics.

5. SERVICE LEVELS AND SERVICE CREDITS

5.1 Vendor shall use commercially reasonable efforts to achieve a monthly Service uptime of at least 99.9%, measured in accordance with Schedule B (the “Service Level”).

5.2 If actual monthly uptime falls below the Service Level, Customer shall be entitled to the following service credits, applied against the next invoice, as Customer's sole and exclusive remedy for such shortfall:

Monthly uptime achieved	Service credit
99.0% – 99.89%	5% of that month's Fees
95.0% – 98.99%	10% of that month's Fees
Below 95.0%	25% of that month's Fees

5.3 Service credits under this Section 5 shall not exceed 25% of the Fees payable for the affected month in aggregate.

6. DATA PROTECTION AND DATA RESIDENCY

6.1 Each Party shall comply with applicable data protection law in connection with its processing of personal data under this Agreement.

6.2 **Data Residency.** All Customer Data shall be stored and processed exclusively within data centres located in the United Kingdom. Vendor shall not transfer, replicate, or otherwise process Customer Data outside the United Kingdom without Customer's prior written consent.

7. EXCLUSIVITY

7.1 During the Term, Vendor shall be Customer's exclusive provider of cloud hosting services for Customer's e-commerce platform, and Customer shall not engage any other third-party hosting provider for services materially similar to the Services without Vendor's prior written consent.

8. LIMITATION OF LIABILITY

8.1 Except in respect of liabilities which cannot be limited or excluded as a matter of law, each Party's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed seven hundred fifty thousand pounds sterling (£750,000).

8.2 Neither Party shall be liable to the other for any indirect, special, or consequential loss arising under this Agreement.

9. INDEMNIFICATION

9.1 Vendor shall defend, indemnify, and hold harmless Customer from and against any third-party claims, damages, and reasonable costs arising out of (a) Vendor's breach of this Agreement, (b) any actual or alleged infringement of a third party's intellectual property rights by the Services, or (c) Vendor's gross negligence or wilful misconduct, except to the extent such claims arise from Customer's misuse of the Services or breach of this Agreement.

10. INSURANCE

10.1 Throughout the Term, Vendor shall maintain, at its own expense, with a reputable insurer authorised to do business in the United Kingdom:

- (a) Commercial General Liability insurance of not less than £2,000,000 per occurrence;
- (b) Professional Indemnity insurance of not less than £2,000,000 per claim; and
- (c) Cyber Liability insurance of not less than £5,000,000 per occurrence,

and shall furnish Customer with certificates of insurance evidencing the foregoing upon written request.

11. TERMINATION

11.1 **Termination for Cause.** Either Party may terminate this Agreement immediately upon written notice if the other Party commits a material breach of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice describing the breach in reasonable detail.

11.2 **Termination for Convenience.** As set out in Section 2.3, following the Initial Term either Party may terminate this Agreement for convenience upon one hundred eighty (180) days' written notice.

11.3 **Effect of Termination.** Upon termination or expiry, Customer shall pay all Fees accrued through the effective date of termination, and Vendor shall make Customer Data available for export for thirty (30) days thereafter.

12. CHANGE OF CONTROL; ASSIGNMENT

12.1 Neither Party may assign this Agreement without the prior written consent of the other Party, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of all or substantially all of its assets.

12.2 **Change of Control.** If a Party undergoes a Change of Control (meaning the acquisition, whether directly or indirectly, of more than fifty percent (50%) of its voting equity, or of all or substantially all of its assets, by a third party) involving a direct competitor of the other Party, the other Party may terminate this

Agreement by giving thirty (30) days' written notice within ninety (90) days of becoming aware of the Change of Control.

13. GOVERNING LAW AND DISPUTE RESOLUTION

13.1 This Agreement, and any dispute or claim arising out of or in connection with it, shall be governed by and construed in accordance with the laws of England and Wales.

13.2 The courts of England and Wales shall have exclusive jurisdiction to settle any dispute arising out of or in connection with this Agreement.

14. GENERAL PROVISIONS

14.1 **Entire Agreement.** This Agreement, together with its Schedules, constitutes the entire agreement between the Parties with respect to its subject matter.

14.2 **Notices.** All notices under this Agreement shall be in writing and delivered to the registered office addresses set out above.

14.3 **Severability.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**For and on behalf of
NORTHBRIDGE DATA SYSTEMS LTD**

**For and on behalf of
SOLSTICE RETAIL GROUP PLC**

Signature: _____

Signature: _____

Name: Eleanor Marsh

Name: Daniel Okafor

Title: Chief Commercial Officer

Title: Chief Operating Officer

Date: 1 March 2024

Date: 1 March 2024

Schedule A (Service Descriptions and Pricing) and Schedule B (Service Level Measurement Methodology) are on file with the Parties and incorporated herein by reference.